

Contentious Chamber

Decision on the merits 74/2025 of April 23, 2025

File number: DOS-2022-04482

Subject: Complaint regarding the requirement for a photographic capture of the identity card for the delivery of a registered mail by Bpost

The Contentious Chamber of the Data Protection Authority, composed of Mr. Hielke HIJMANS, president, and Messrs. Romain Robert and Dirk Van Der Kelen, members;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter referred to as "GDPR";

Considering the Law of December 3, 2017, establishing the Data Protection Authority (hereinafter "LCA")¹;

Considering the internal regulations as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents in the file;

Has made the following decision regarding:

The complainant:

X, hereinafter referred to as "the complainant",

The defendant: BPOST SA, Boulevard Anspach 1, Box 1, 1000 Brussels, with company number BE.214.596.464, represented by Ms. Heidi Waem and Mr. Simon Verschaeve, hereinafter referred to as "the defendant".

1 The DPA reminds that the law of December 25, 2023, amending the law of December 3, 2017, establishing the Data Protection Authority (LCA), as well as the new internal regulations of the DPA, came into force on June 1, 2024. The new provisions apply to complaints, mediation files, requests, inspections, and procedures before the Contentious Chamber that begin from this date. The new LCA is available via this link: [Decision on the merits 74/2025 — 2/17](https://www.ejustice.just.fgov.be/cgi/loi/change lg.pl?language=nl&la;=N&cn;=2017120311&table; name=wet, and the internal regulations via this link: https://www.gegevensbeschermingsautoriteit.be/publications/reglement-van-interne-orde-van-de-gegevensbeschermingsautoriteit.pdf. Files initiated before June 1, 2024 — of which the present file is a part — remain subject to the provisions of the LCA and the internal regulations as they existed before this date.</p></div><div data-bbox=)

I. Facts and procedure

1. The subject of the complaint concerns the photographic capture of the identity cards of recipients of registered mail (hereinafter, "registered mail delivery practice").
2. On October 28, 2022, the complainant, in order to receive a registered letter addressed to him, is compelled to be subject to the registered mail delivery practice of the defendant. The complainant refuses and nevertheless offers to show his identity card without accepting the photographic capture. The postal agent reiterates, following a call with his supervisor, that the photographic capture is necessary for the delivery of the registered mail. Following this altercation, the complainant files a complaint with the Data Protection Authority (hereinafter, "DPA") against the defendant.
3. On November 24, 2022, the First Line Service (hereinafter, "SPL") informs the complainant of the proper receipt of his complaint by the DPA and invites him to submit a request to exercise his rights to the DPO of the defendant.
4. On November 30, 2022, the complainant indicates that he has submitted a request to the defendant using the online form provided, which led him to transmit his private address as well as a copy of his identity card (hereinafter, "form practice"). He consequently requests the addition of a grievance to his complaint regarding the non-compliance of the said form with the requirements of Article 5.1(c) of the GDPR.

5. On December 7, 2022, the complaint is declared admissible by the SPL based on Articles 58 and 60 of the LCA, and the complaint is transmitted to the Contentious Chamber under Article 62, § 1 of the LCA.

6. On May 17, 2023, the Contentious Chamber decides, under Article 95, § 1, 1° and Article 98 of the LCA, that the file can be processed on the merits.

7. On June 26, 2023, the parties concerned are informed by registered mail of the provisions as set out in Article 95, §2 and Article 98 of the LCA. They are also informed, under Article 99 of the LCA, of the deadlines for submitting their conclusions. The grievances identified by the Contentious Chamber concern alleged violations of the following articles:

- Alleged violation of Article 5.1(a) read in conjunction with Article 6 of the GDPR; and of Article 5.1(c) of the GDPR on the grounds that the defendant requires the complainant to take a photo of his identity card to ensure the delivery of the registered letter;

- Alleged violation of Article 5.1(c) of the GDPR on the grounds that the complaint form of the defendant requires an excessive amount of data that exceeds what is necessary to manage a specific complaint regarding data protection;

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Alleged violation of Articles 12 and 13 of the GDPR on the grounds that the defendant is unable to provide the privacy statement or any information regarding the processing of personal data;

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Alleged violation of Article 5.2 read in conjunction with Articles 24 and 25 of the GDPR on the grounds that the defendant is unable to demonstrate its compliance with the data protection principles set out in the GDPR. More specifically, it appears that there are missing policies, procedures, and appropriate technical and organizational measures necessary to ensure the protection of personal data.

For the findings related to the subject of the complaint, the deadline for receiving the defendant's response conclusions, following their request for an extension, was set for September 6, 2023, the deadline for the complainant's reply conclusions was set for September 28, 2023, and finally, the deadline for the defendant's reply conclusions was set for October 20, 2023.

8. On September 6, 2023, and October 20, 2023, the Contentious Chamber received the response and reply conclusions from the defendant, who emphasizes that the anonymity of the complainant complicates the response to the above grievances. The defendant wishes to be heard.

9. On May 24, 2024, the complainant expresses a desire to maintain their anonymity on the grounds that their complaint concerns the practice of distributing registered mail by the defendant involving photographic capture of the identity cards of recipients of registered mail and not on their specific case.

10. On June 4, 2024, in order to respect the rights of the defense, the Contentious Chamber communicates the aforementioned reasons to the defendant and gives them the opportunity to respond by June 24, 2024, which the defendant does.

11. On July 24, 2024, the complainant raises the issue of not having received the defendant's response and summary conclusions and not having had the opportunity to respond within the deadlines prescribed by the letter of June 26, 2024.

12. On August 14, 2024, the Contentious Chamber, in respect of the rights of the defense, deems it necessary to reopen the debates to allow the complainant to respond to the defendant's conclusions and for the latter to reply.

13. For the findings related to the subject of the complaint, the deadline for receiving the complainant's response conclusions was set for Wednesday, September 11, 2024, and the deadline for receiving the defendant's additional summary conclusions was set for Wednesday, October 9, 2024.

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14. On September 9, 2024, the Contentious Chamber received the complainant's response conclusions regarding the findings related to the subject of the complaint.

15. On October 9, 2024, the Contentious Chamber received the defendant's additional summary conclusions.

16. On December 9, 2024, the parties are informed that the hearing will take place on January 21,

2025.

17. On January 21, 2025, the parties are heard by the Contentious Chamber.

18. On January 29, 2025, the minutes of the hearing are submitted to the parties.

19. On February 11, 2025, the Contentious Chamber receives some remarks regarding the minutes.

II. Motivation

II.1. On the procedure

20. The defendant considers that the procedure violated the principles of good administration and their rights of defense.

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First, the defendant argues that the Contentious Chamber cannot act against a "general practice," such as the practice of distributing registered mail, through an *actio popularis*. Furthermore, they contend that the anonymity of the complainant did not allow them to defend themselves appropriately and that the Contentious Chamber failed in its obligation to provide reasoning by not justifying it. Finally, they challenge the vague formulation of the grievances, particularly the last two.

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Second, the lack of thorough follow-up of this case with the complainant by the SPL, justified by the complainant's anonymity, as well as a flawed analysis of the impact criteria of the processing and the efficiency of the intervention by the Contentious Chamber constitutes a violation of the principle of economy;

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Third, the defendant raises that in its decision 102/20212, the Contentious Chamber deemed a complaint regarding the compliance of the disputed processing with Articles 5.1.a) and 6.1; juncto Article 5.1.c of the GDPR to be unfounded. Furthermore, in its decision 38/20233, the Contentious Chamber found the defendant's contact form to be compliant with the provisions of Article 5.1.c) of the GDPR. They believe that a new decision on these points would be contrary to the principle of *ne bis in idem*;

2 APD, Decision 102/2021 of September 13, 2021.

3 APD, Decision 38/2023 of March 27, 2023.

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Fourthly, the defendant explains that the Litigation Chamber is not competent to challenge the process of identifying recipients of registered mail, as it is prescribed by Article 9 of the Royal Decree of April 24, 2024. Furthermore, it emphasizes that this article is cited as an example of a legal provision requiring a copy of the identity card on the APD4 website and that a decision against this position would violate the principle of legal certainty and reasonableness;

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Fifthly, the complaint in this case should have been classified as without further action. None of the nine general criteria for significant societal and/or personal impact of the APD's Policy for Classification Without Further Action apply to this case. Moreover, the processing referred to in the complaint is small-scale, concerning only one person, and does not involve sensitive personal data. Therefore, continuing this matter on the merits undermines the principles of reasonableness and the duty of economy, as well as the principles of legal certainty and legitimate trust.

21. For these reasons, the defendant considers that the Litigation Chamber should classify the case as without further action.

.II.1.1. The rights of the defense

a. The subject of the complaint and the anonymity of the complainant

22. The Litigation Chamber refers to the judgment of the Court of Cassation of October 7, 2021, whose paragraph 3 states "[...] that a concerned person has the right to file a complaint with the data protection authority against processing that they believe violates the rights conferred upon them by the [law of July 30, 2018], such as the right to minimal processing of their personal data, in accordance with Article 5, paragraph 1, point c), of the [law of July 30, 2018], so that they can benefit from a service or a benefit. This is also the case when the data of the concerned persons has not been

processed themselves, but is subject to processing.”

23. In this case, the complainant was denied access to the defendant's service for refusing to comply with its practice of distributing registered mail. He contests the legality of this, although he has not undergone the processing, basing his complaint on the processing to which he would have been exposed had he consented.

4 APD, Presentation of the eID (consulted on April 22, 2024),
(www.autoriteprotectiondonnees.be/professionnel/themes/eid/presentation).

5 Judgment of the Court of Cassation c.20.0323.N/7 of October 7, 2021, point 3.

6 Law of July 30, 2018, on the protection of natural persons with regard to the processing of personal data.

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24. The Litigation Chamber considers that the complaint does not constitute an *actio popularis*, as the complainant demonstrates a personal and direct interest, consisting of no longer being exposed to this practice of distributing registered mail by the defendant.

25. From this analysis, it follows that the argument regarding a violation of the rights of the defense due to the anonymity of the complainant must be dismissed. This case concerns the legality of this practice implemented by the defendant, regardless of the specific circumstances of the complainant, whose identity is therefore not determinative.

26. Furthermore, the complainant is not seeking compensation for harm but is merely expressing his desire not to be subjected, in the future, to the contested processing. The complaint thus concerns the compliance of this practice of distributing registered mail as such with the requirements of the GDPR.

27. In support of what has been previously established, the Litigation Chamber recalls that the anonymity of the complainant is guaranteed throughout the procedure by Article 95, §2 of the LCA to which Article 98 of the same law refers.

28. When a complainant files a complaint anonymously, in accordance with the provisions of the aforementioned articles, it is presumed that the communication of the complainant's identity to the defendant presents a serious risk of harmful consequences, in accordance with Article 47 of the ROI.

29. Furthermore, the Litigation Chamber reiterates, as stated in point 25, that the identification of the complainant is, in this case, not determinative for delineating the processing for which the defendant must explain.

30. The interpretation of the ROI and the LCA argued by the defendant must be dismissed as it would hinder the exercise of the right to effective judicial remedy provided for in Articles 79.1 of the GDPR and 47 of the Charter of Fundamental Rights of the European Union, as interpreted by the aforementioned judgment of the Court of Cassation.

31. The Litigation Chamber emphasizes that the arguments presented above have been communicated to the parties, albeit more briefly, in its letter of June 4, 2024. It consequently rejects the defendant's allegations regarding a lack of motivation.

32. The Litigation Chamber concludes that the subject of the complaint is legitimate and that the anonymity of the complainant is justified. It therefore rejects the alleged violations of the rights of the defense as raised by the defendant.

b. The formulation of the grievances

33. The Litigation Chamber deems it necessary to recall that its invitation letter to conclude, dated June 26, 2023, reiterates the content of the complaint, the alleged violations of the GDPR.

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and the complaint form as submitted by the complainant. The grievances raised, reiterated in point 7 of this decision, must be examined in light of this letter, including the contextual elements contained therein.

34. In this instance, the Contentious Chamber considers that these grievances are formulated with sufficient clarity to allow the defendant to understand the circumstances of the complaint that led the Contentious Chamber to presume violations of the specific provisions of the GDPR that are referenced.

35. To this end, the Contentious Chamber refers to the conclusions of the defendant, which respond in

detail to the points raised by the aforementioned grievances.

36. The Contentious Chamber therefore rejects the argument that the alleged vague formulation of the grievances would have violated the rights of the defense.

.II.1.2. The admissibility of the complaint and its substantive treatment

37. The Contentious Chamber considers the arguments regarding the admissibility of the complaint and its substantive treatment to be unfounded for two reasons.

38. Firstly, the Contentious Chamber notes that the Market Court, in its judgment 2022/AR/428, emphasized that "the examination of the admissibility of complaints is assigned [...] solely to the front-line service of the DPA." and "it follows from the reading [of articles 94, 95, and 100 of the LCA] that the legislator did not foresee, for the Contentious Chamber, the possibility of making a decision regarding the admissibility of the complaint brought before it [...]".

39. In this case, the SPL decided that the complaint was admissible. It is therefore not for the Contentious Chamber to revisit this decision. Furthermore, this decision has little consequence for the defendant, as the grounds invoked can be analyzed by the Contentious Chamber through its Policy of non-prosecution.

40. In this regard, the Contentious Chamber recalls that the follow-up it decides to give to a case falls within its discretionary power. It therefore reminds that the DPA's Policy of non-prosecution only provides guidance to the parties but does not bind it, in any way, to the follow-up it gives to the case before it in accordance with articles 94, 95, and 108 of the LCA, nor does it confer upon the parties a right enforceable against the Contentious Chamber regarding the non-prosecution of their cases.

7 Articles 95§2 and 98 of the LCA.

8 Market Court, judgment 2022/AR/42 of June 8, 2022.

9 Ibid., point 20.

10 Ibid., point 21.

11 Market Court, judgment 2021/AR/1044, of December 1, 2021, point 7.2:

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41. Furthermore, there is no case of an obligation for negative motivation, so the Contentious Chamber is not required to justify why it would not have resorted to the other possibilities provided for in article 95, §1 of the LCA.

42. Secondly, the Contentious Chamber believes that the treatment of the case at hand meets the opportunity criteria of the Policy of non-prosecution, which the defendant attempts in vain to raise against it.

43. During the hearing, the defendant confirms processing an average of 120,000 registered mail items per day. Therefore, the defendant theoretically has 45,000,000 identity card photos available at all times for consultation in a file. Additionally, the defendant is aware of its size and importance in the Belgian market, citing this as a mitigating factor in its defense against the second grievance.

44. Consequently, the number of individuals impacted by this processing, the amount of data collected and retained, and the sensitivity of the data contained on the identity card demonstrate that the processing of the case at hand has a high societal and personal impact.

45. The Contentious Chamber deems it necessary to remind that it is not required to justify how the intervention of the DPA is reasonable, economical, and prudent. However, in the interest of completeness, the Contentious Chamber considers that based on

- a. the high societal impact of the practice of distributing registered mail,
 - b. the extent of the dispute as determined through the discretionary power of the Contentious Chamber in the invitation to submit conclusions, and
 - c. the legal capacity of the Contentious Chamber to control and, if necessary, adapt this processing,
- there is no reason to doubt that the intervention of the DPA was reasonable, economical, and prudent and that the rights of the defense were respected.

"The argument put forward by the FOD FINANCIËN that the non-prosecution policy was not followed by the Disputes Committee is unfounded.

The Disputes Chamber examines each complaint for its admissibility and merits. The fact that

non-prosecution 'can' be applied (article 100 §1, 1° WOG) does not grant a right to non-prosecution (moreover, the targeted 'non-prosecution policy' is of a later date than the complaint)."

12 According to the provisions of article 9, §1 of the Royal Decree of March 14, 2022, the retention period for these verification proofs is 13 months.

13 Point 59 of the defendant's summary conclusions.

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.II.1.3. The principle of ne bis in idem

46. In its judgment of March 22, 2022, the CJEU explains that "the condition 'idem' requires that the material facts be identical. Conversely, the principle of ne bis in idem is not intended to apply when the facts in question are not identical, but merely similar. Indeed, the identity of material facts is understood as a set of concrete circumstances arising from events that are, in substance, the same, in that they involve the same author and are indissociably linked to each other in time and space."

47. Regarding decision 102/2021, the Contentious Chamber notes that the facts involve the same author as in the present case, i.e., the defendant, but that they are not indissociably linked to each other in time or space. The latter occurred a year apart, do not concern the same complainant, and consequently took place in different locations. Therefore, the Contentious Chamber argues that the facts between the present case and those of decision 102/2021 are similar but not identical.

48. Regarding decision 38/2023, the Contentious Chamber observes that the contact form in question did not request a copy of the identity card, contrary to the one challenged in the present case. The identity of facts, required by the principle of ne bis in idem, is therefore not satisfied here either.

49. Since the condition of "idem," constitutive of the principle of ne bis in idem, is not fulfilled in this case, the Contentious Chamber considers that this principle does not apply.

50. However, in accordance with the principle of legal certainty and legitimate expectation, the Contentious Chamber specifies that the content of the aforementioned decisions will be part of the assessment of the grievances in the present case.

.II.1.4. The jurisdiction of the Contentious Chamber

51. The Contentious Chamber recalls that, in accordance with Article 57.1.f) of the GDPR, the DPA has the obligation to handle complaints from data subjects and to decide on their follow-up in accordance with Article 95, §1 of the LCA. In handling the complaint in the present case, it is therefore exercising its powers as an administrative litigation body of the DPA, under Article 32 of the LCA.

14 CJEU, March 22, 2022, Bpost v. Belgian Competition Authority, ECLI:EU:C:2022:202, paragraphs 36 and 37.

15 See documents 28 to 32 of the inspection report of decision 38/2023.

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52. Regarding the subject of the first grievance, the Contentious Chamber emphasizes that its analysis consists solely of evaluating the data processing in question in light of the provisions of the GDPR and the law of July 30, 2018.

53. Furthermore, the Contentious Chamber does not consider itself bound by the publication on the DPA's website, which is of a general and strictly informative nature and does not rely on the facts of the present case and the arguments of the parties.

54. In conclusion, the Contentious Chamber is competent to adjudicate the present case.

.II.2. First grievance: Compliance of the practice of distributing registered mail with Articles 5.1.a) and 6 of the GDPR; and Article 5.1.c) of the GDPR

55. First, the defendant argues that its practice of distributing registered mail is prescribed by Article 9, §1 of the Royal Decree of March 14, 2022, which constitutes its legal basis.

56. Second, the defendant adds that it accepts other forms of identity proof provided for in this article, as long as they meet the legal conditions of Article 9, §2 of the Royal Decree of March 14, 2022.

Moreover, the wording of the aforementioned Article 9, §1 offers it the possibility to choose the means of proof that it deems useful. Consequently, it considers it impossible to assert that the processing was carried out in violation of the principle of data minimization.

57. The Contentious Chamber specifies that it will first evaluate whether the defendant validly bases this practice on Article 9, §1 of the Royal Decree of March 14, 2022, in accordance with Articles 5.1.a)

and 6.1.c) of the GDPR. Secondly, it will assess the compliance of this processing with the principle of data minimization of Article 5.1.c) of the GDPR.

.II.2.1. The basis of the practice of distributing registered mail on a valid legal basis

58. The basis for processing under Article 6.1.c) of the GDPR is subject to two conditions: a clear and precise legal basis in Union law or Belgian law, and the necessity of the processing for the fulfillment of that legal obligation.

59. The Contentious Chamber notes that Article 9, §1 of the Royal Decree of March 14, 2022 delineates the defendant's practice of distributing registered mail.

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clearly, precisely, and predictably as understood by Article 6.3 of the GDPR. The legal provision on which the defendant bases this practice is therefore valid.

60. Regarding the necessity of this practice, the Litigation Chamber notes that Article 9, § 1 of the Royal Decree of March 14, 2022 requires the defendant to provide proof of verification of the identity of the recipients of registered mail through photographic, handwritten, or electronic capture of an identity document. An identity document is defined as "any document that allows for the verification of a person's identity [...] issued by an administrative authority [...] [and] mentions the name and surname of the holder and is provided with a photo or the holder is recognizable."

61. The Litigation Chamber notes that the identity card is cited as an example of an identity document whose photographic capture allows for the verification of the identity of the recipient of registered mail.

62. Therefore, the practice of distributing registered mail by the defendant is prescribed by Article 9, § 1 of the Royal Decree of March 14, 2022 and meets its obligations.

63. In conclusion, the Litigation Chamber considers that the defendant validly bases this practice on Article 9, § 1 of the Royal Decree of March 14, 2022, in accordance with Articles 5.1.a) and 6.1.c) of the GDPR.

.II.2.2. Data minimization in processing induced by Article 9, § 1 of the Royal Decree of March 14, 2022

64. The principle of data minimization – Article 5.1.c) of the GDPR – requires the processing of data necessary for achieving the identified purpose and ensuring that this processing cannot be carried out by less intrusive means.

65. In this regard, the Litigation Chamber notes that a postal agent only has access to the data on the registered mail (name, surname, address) to verify the identity of the recipient. However, an identity card contains more data: date of birth, place of birth, sex, nationality, card number, validity period, and national register number for cards issued after January 14, 2020. It should be emphasized that postal agents do not have any reference base to verify the accuracy of all the data collected on the identity card.

18 APD, Decision 73/2025, point 45.

19 Article 9, § 2 of the Royal Decree of March 14, 2022.

20 See also Decision 102/2021 and Decision 73/2025.

21 Recital 39 of the GDPR.

22 See also Decision 73/2025.

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66. Furthermore, the Litigation Chamber notes that during the hearing, the defendant indicated that it offers an alternative to individuals who refuse the photographic capture of their identity card. This alternative consists of the handwritten inscription of the card number on the delivery notice, signed by the recipient, and then photographed by the postal agent.

67. This alternative demonstrates that identity verification does not require all the data contained on the identity card.

68. The Litigation Chamber therefore considers that the purpose described in Article 9, § 1 of the Royal Decree of March 14, 2022 does not require the collection of all the data contained on an identity card.

69. In conclusion, the Litigation Chamber considers that the processing prescribed by Article 9, § 1 of the Royal Decree of March 14, 2022 involves excessive data collection, thus violating the data minimization principle of Article 5.1.c) of the GDPR.

70. Consequently, and in accordance with the primacy of Union law and the ruling of the Market Court 2024/AR/1690, this specific processing must be set aside or resolved using appropriate technical and organizational measures.

.II.3. 2nd grievance: Compliance of the contact form practice with Article 5.1.c) of the GDPR

71. The defendant argues that facilitating the rights of data subjects is a complex procedure requiring thoughtful adjustment, taking into account the obligations of the GDPR, as well as its importance and size in the Belgian market. To this end, it defends the request for an identity document (identity card, driver's license, or passport) to sufficiently verify the identity of the applicant and ensure the confidentiality of the personal data in its possession. The defendant emphasizes that it only requires the front side of the identity document and that data subjects are free to blur the card number and photo.

72. In this regard, the Litigation Chamber points out that the contact form considered in Decision 38/2023 requested the necessary information for the defendant to respond to a request from a data subject, without requiring a copy of the identity document.

73. However, the Litigation Chamber notes that the only justification invoked for the additional request for a copy of the identity document lies in the measures identified in point 71 of this decision.

23 See also Decision 73/2025.

24 Market Court, ruling 2024/AR/1690 of March 19, 2025, point 20.

25 Decision 38/2023, point 92 and documents 28 to 32 of the inspection report of Decision 38/2023. Decision on the merits 74/2025 — 13/17

74. The Contentious Chamber notes that this additional request involves, at the very least, the processing of the following personal data: the last name, first name, signature, place, and date of birth.

75. Furthermore, the Contentious Chamber observes that this identity verification could be carried out solely through the last name, first name, and date of birth of the concerned individual, in analogy to its reasoning in point 65 of this decision.

76. It follows that the request for a copy of an identity document in the defendant's contact form entails the collection of data that is neither relevant nor necessary for verifying the identity of the applicants.

77. Therefore, the Contentious Chamber finds that the defendant violates Article 5.1.c) of the GDPR, for failing to sufficiently assess the principle of data minimization by adding the request for a copy of an identity document to its contact form.

.II.4. 3rd grievance: Compliance of the information provided under Articles 12 and 13 of the GDPR

78. The defendant claims to provide the information required by Articles 12 and 13 of the GDPR through the following channels:

- When delivering a registered item that cannot be handed over to the recipient, the postal agent leaves a notice of passage on which there is a link to the defendant's website privacy policy that contains the information required by the aforementioned articles;
- When delivering a registered item, the Mobi provides a link to a short privacy statement that can be shown to the recipient; and
- A privacy policy is located at the bottom of its website and contains chapters dedicated to the processing carried out during the delivery of registered items, which list the categories of data collected, detail their retention period, the purposes pursued, and explicitly mention the Royal Decree of March 14, 2022, as the legal basis.

26 The Contentious Chamber only lists the data found on the three identity documents accepted by the defendant. Here is a more detailed enumeration:

Regarding the identity card: last name, first name, gender, date of birth, place of birth (for cards issued before January 14, 2020), nationality, validity date, signature, and national register number (for cards issued from January 14, 2020).

Regarding the passport: type of passport, last name, first name, nationality, date of birth, place of birth, gender, validity period, issuing municipality, and signature.

Regarding the driver's license: last name, first name, date of birth, place of birth, validity period, issuing municipality, and signature.

27 See also Decision 38/2023 and Decision 73/2025

79. The Contentious Chamber recalls that, in accordance with Article 12.1 of the GDPR, data controllers are required to provide the data subject with the information referred to in Articles 13 and 14 of the GDPR in a concise, transparent, comprehensible, and easily accessible manner, using clear and simple terms, taking appropriate measures to this end.

80. In this case, the Contentious Chamber finds that the information regarding the processing of the case at hand is easily accessible given the communication methods listed in point 78 of this decision. It follows that the concerned individuals interacting with the defendant can be easily redirected to the defendant's privacy policy, as understood by Article 12.1 of the GDPR.

81. Therefore, the Contentious Chamber does not observe any breaches of Articles 12 and 13 of the GDPR in this case.

.II.5. 4th grievance: On the principle of accountability and data protection by design and by default (Articles 5.2, in conjunction with 24 and 25 of the GDPR)

82. The defendant defends that it applies procedures compliant with the GDPR, particularly for the identification of recipients of registered items, in accordance with the Royal Decree of March 14, 2022. These measures include:

- Technical measures: i) the capture of the identity card by a secure device that, ii) is only accessible by the agent who performed it, iii) is stored securely and encrypted for 13 months, and iv) is automatically deleted once this period has expired.
- Organizational measures: i) the possibility of presenting another identity document other than the identity card, ii) regular training of its employees regarding the procedure to be followed; iii) mandatory three-day training for new employees during which the identity verification procedure is detailed.

83. In accordance with Article 5.2 of the GDPR, read in conjunction with Articles 24 and 25, the data controller is required to demonstrate the compliance of its processing with the requirements of the GDPR and/or the implementation of technical and organizational measures, by design or by default, intended to mitigate the risks associated with such processing.

84. In this instance, the measures detailed by the defendant ensure the security and confidentiality of the data collected in the context of the legal obligation of Article 9, §1 of the Royal Decree of March 14, 2022.

85. However, the Contentious Chamber notes that the processing induced by this legal obligation violates the provisions of Article 5.1.c) of the GDPR, as detailed in points 68 and 69 of this decision. This finding alone cannot suffice to establish a violation.

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of Article 5.2 of the GDPR, read in conjunction with Articles 24 and 25, in the absence of concrete elements demonstrating a failure to implement the resulting obligations.

86. Consequently, the Contentious Chamber does not conclude that there has been a violation of Article 5.2 of the GDPR, interpreted in conjunction with Articles 24 and 25.

87. However, in light of the violation of Article 5.1.c) of the GDPR analyzed in Title II.2 of this decision, the Contentious Chamber deems it justified to issue a warning against the defendant so that, in the future, they will be able to demonstrate the effective implementation of appropriate technical and organizational measures to ensure compliance with the processing requirements of Article 5.1.c) of the GDPR.

III. Corrective Measures

88. Under Article 100 LCA, the Contentious Chamber has the power to:

- 1° dismiss the complaint;
- 2° order a dismissal;
- 3° pronounce a suspension of the ruling;
- 4° propose a settlement;
- 5° issue warnings or reprimands;
- 6° order compliance with requests from the data subject to exercise their rights;
- 7° order that the interested party be informed of the security issue;
- 8° order the freezing, limitation, or temporary or permanent prohibition of processing;
- 9° order compliance of the processing;

- 10° order the rectification, restriction, or deletion of data and notification of such to the recipients of the data;
- 11° order the withdrawal of the accreditation of certification bodies;
- 12° impose fines;
- 13° impose administrative fines;
- 14° order the suspension of cross-border data flows to another State or an international organization;
- 15° refer the case to the Public Prosecutor's Office of the King of Brussels, which informs it of the follow-up to the case;
- 16° decide on a case-by-case basis to publish its decisions on the website of the Data Protection Authority.

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89. Based on the documents in the file and following its analysis, the Contentious Chamber concludes:

- a. There has been a violation of Article 5.1.c) of the GDPR in that the defendant collects identity document data through its contact form, which is not relevant or necessary for the intended purpose, as specified in Title II.3.;
- b. There has been a violation of Article 5.1.c) of the GDPR, in that the processing induced by Article 9, §1 of the Royal Decree of March 14, 2022 collects data that is not relevant or necessary to fulfill this legal obligation, as specified in Title II.2.;
- c. There is no violation of Articles 12 and 13 of the GDPR, as specified in Title II.4.; and
- d. There is no violation of Article 5.2, as interpreted by Articles 24 and 25 of the GDPR, as specified in Title II.5.

90. Due to the violation in point 89.a), the Contentious Chamber orders the defendant to make the collection of identity document data through its form compliant with the provisions of Article 5.1.c) of the GDPR.

91. Due to the violation in point 89.b), the Contentious Chamber issues a warning against the defendant based on Article 100, 5° of the LCA so that in the future, the latter will be able to demonstrate the minimization of data collected by its practice of distributing registered mail.

IV. Publication of the Decision

92. Given the importance of transparency regarding the decision-making process and the decisions of the Contentious Chamber, this decision is published on the website of the Data Protection Authority, with the direct identification data of the parties removed, except for the defendant.

93. The Contentious Chamber considers that this identification is necessary for public information and for a proper understanding of its decision. Given the legal references cited in support of its reasoning and, consequently, the inevitable re-identification of the defendant, the mention of Bpost cannot be omitted.

28 In this decision, the Contentious Chamber took into account the comments of Bpost on the minutes of the hearing of January 21, 2025.